

[18 & 19 GEO. 5.] *London County* [Ch. xcii.]
Council (Ilford and Barking Drainage) Act, 1928.



CHAPTER xcii.

An Act to make provision with respect to the admission into the London main drainage system of sewage and drainage from the borough of Ilford and the urban district of Barking Town. A.D. 1928.
[3rd August 1928.]

WHEREAS it is expedient that the provisions contained in this Act with respect to the admission by the London County Council into the London main drainage system of sewage and drainage from the borough of Ilford and the urban district of Barking Town should be made and that the powers with reference thereto by this Act conferred upon the London County Council and the mayor aldermen and burgesses of the borough of Ilford and the Barking Town Urban District Council should be granted :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas the mayor aldermen and burgesses of the borough of Ilford and the Barking Town Urban District Council have in relation to the promotion of the Bill for this Act complied with the requirements of the Borough Funds Acts 1872 and 1903 :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords

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A.D. 1928. Spiritual and Temporal and Commons in this present
— Parliament assembled and by the authority of the same
as follows :—

Short title. 1. This Act may be cited as the London County
Council (Ilford and Barking Drainage) Act 1928.

Interpre- 2. In this Act unless the subject or context otherwise
tation. requires :—

“ The Council ” means the London County Council ;

“ The county ” means the administrative county of
London ;

“ The Ilford district ” means the borough of Ilford
in the county of Essex as that borough is con-
stituted at the date of the passing of this Act ;

“ The Ilford Corporation ” means the mayor alder-
men and burgesses of the borough of Ilford ;

“ The Barking district ” means the urban district of
Barking Town in the said county of Essex as
that district is constituted at the date of the
passing of this Act ;

“ The Barking Council ” means the Barking Town
Urban District Council ;

“ The two authorities ” means the Ilford Corporation
and the Barking Council and “ the authority ”
means the Ilford Corporation or the Barking
Council according as the context may require ;

“ The district ” means the Ilford district or the
Barking district according as the context may
require ;

“ The two districts ” means the Ilford district and
the Barking district ;

“ The new sewer ” means the sewer or sewers and
other works referred to in subsection (1) (a) of
the section of this Act of which the marginal note
is “ Two authorities to construct sewers and
works &c.” ;

“ The junction point ” means the point at which the
new sewer is connected with the sewers and
works conveying sewage and drainage from the
Ilford district and the Barking district into the
new sewer ;

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“ Total net annual value ” means (except so far as A.D. 1928.
is otherwise stated) as respects the Ilford district
and the Barking district respectively the net
annual value of the hereditaments in the district
in force on the first day of April in the financial
year with reference to which the expression is
used ascertained in accordance with the pro-
visions of the Rating and Valuation Act 1925
with the addition of the annual value which is
not for the time being comprised in such net
annual value of hereditaments occupied in the
district by or on behalf of the Crown for public
purposes in respect of which a contribution is
made by the Crown in aid of rates such annual
value to be equivalent to the net annual value
which would correspond with the value repre-
senting rateable value entered in the valuation
list or lists in respect of such hereditaments.

3.—(1) Subject to the provisions of this Act the two authorities shall proceed forthwith after the passing of this Act at their own expense to exercise their powers under the Public Health Act 1875 of constructing and shall accordingly construct and with all due diligence complete and shall thereafter at the like expense maintain in good repair order and condition—

Two autho-
rities to
construct
sewers and
works &c.

- (a) a sewer or sewers and other works in the Barking district commencing at a point at or near the existing sewage works of the Barking Council or such other point as may be approved by the Council and terminating by a connection with the northern outfall sewer of the Council at a point at or near the southern extremity of Jenkins Lane or such other point as may be so approved; and
- (b) all such other sewers and works as shall be necessary to convey the sewage and drainage of the two districts into the new sewer at the junction point.

The new sewer shall be constructed by the two authorities in accordance with plans sections and specifications previously submitted to and reasonably approved by the Council and shall be completed in all respects to the reasonable satisfaction of the Council.

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(2) The two authorities shall contemporaneously with the construction of the new sewer provide in connection therewith at such point or points as may be reasonably required by the Council all such works and appliances as the Council may reasonably decide are necessary or proper for controlling excluding gauging and continuously recording the quantity of sewage and drainage delivered by means of the new sewer into the London main drainage system.

(3) The two authorities shall respectively at their own expense and to the reasonable satisfaction of the Council at all times maintain in good order and keep under proper supervision and when necessary renew all works and appliances provided by them pursuant to subsection (2) of this section and from time to time provide and thereafter maintain and keep as aforesaid all such further or other works and appliances as the Council may reasonably decide are necessary or proper for any such purpose as is referred to in that subsection.

Notice to
Commissioner of
Police.

4. Before breaking up or otherwise interfering with any street or road situate in the metropolitan police district in connection with the construction of the new sewer the two authorities shall (except in cases of emergency) give seven days' notice in writing to the Commissioner of Police of the metropolis and make such arrangements with the said commissioner as may be reasonably necessary so as to cause as little interference as may be reasonably practicable with the traffic in the street or road during such construction.

As to construction
and vesting
of part of
new sewer.

5. Notwithstanding anything contained in this or any other Act so much of the new sewer as will be situate within sixty feet of the centre of the northern outfall sewer of the Council as existing at the passing of this Act shall be completed in all respects to the satisfaction of the Council and shall on completion be the property of the Council.

Discharge of
sewage and
drainage
from Ilford
district and
Barking
district into
London

6.—(1) Subject to the provisions of this Act the two authorities on the completion of the new sewer shall have the right to discharge into that sewer and the Council shall receive by means thereof into the London main drainage system sewage and drainage from the Ilford district and the Barking district respectively for conveyance to and treatment and disposal at the outfall works

of the Council Provided that the quantity of sewage and drainage so discharged from the two districts shall not in any period of twenty-four consecutive hours exceed fifty gallons per head of the population for the time being of the two districts and that of that maximum quantity not more than one-twelfth shall be allowed within any one hour to enter the new sewer so as to be delivered into the London main drainage system. A.D. 1928.
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main drainage system.

(2) If at any time the Council on the one hand and the Ilford Corporation and the Barking Council or either of them on the other hand shall be unable to agree as to the number of persons constituting the population for the time being of the two districts such number shall be determined by arbitration as hereinafter provided.

(3) The admission of sewage and drainage from the two districts into the London main drainage system shall be entirely prevented at such times as the chief engineer or other duly authorised officer of the Council may reasonably consider necessary in any case of emergency or for the purpose of inspection or repair of sewers and the Ilford Corporation and the Barking Council shall on the requirement of the said chief engineer or other officer take all such steps as may be necessary for that purpose.

(4) Neither of the two authorities shall without the consent in writing of the Council at any time—

- (a) make or permit to be made any communication with the new sewer by means of which sewage or drainage can be admitted to that sewer otherwise than at the junction point; or
- (b) permit the sewage or drainage of any land or premises outside their respective districts to drain into the sewerage system of the Ilford district or the Barking district :

Provided that such consent shall not be withheld in the case of any premises in the urban district of Dagenham which may now or hereafter be drained into the sewerage system of the Ilford district under the provisions of an agreement made the thirtieth day of December one thousand nine hundred and twenty-seven between the Ilford Corporation of the one part and the urban district council of Dagenham of the other part and as regards any such premises which may be so drained the

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A.D. 1928. — Ilford Corporation shall pay to the Council (in addition to the sums required by the section of this Act of which the marginal note is "Half-yearly contributions by two authorities") such sums as may be agreed between the Council and the Ilford Corporation or failing agreement as shall be determined by arbitration but there shall be deducted therefrom such amount as may be agreed or determined by arbitration in respect of hereditaments in the Ilford district draining into the sewers of the urban district council of Dagenham.

Two authorities to furnish particulars.

7. The Council shall be furnished once in every fortnight by and at the expense of the two authorities with all such particulars as the Council may reasonably require of the quantity of sewage and drainage discharged by means of the new sewer into the London main drainage system.

Prohibiting the making of communications with new sewer.

8. Notwithstanding anything contained in any other enactment the owner or occupier of any premises in any area in or through which the new sewer or any part or parts thereof shall be constructed shall not without the consent of the Council and the two authorities make or cause to be made any communication with the new sewer.

Two authorities to prevent admission into new sewer of matters other than sewage and drainage.

9. The two authorities shall respectively at their own expense take all necessary precautions for preventing the admission into the new sewer from their respective districts of any liquid or solid matters other than the sewage and drainage from the sewerage systems of the two districts respectively and from premises in the urban district of Dagenham which may be drained into the sewerage system of the Ilford district in pursuance of the proviso to subsection (4) of the section of this Act of which the marginal note is "Discharge of sewage and drainage from Ilford district and Barking district into London main drainage system."

Power of entry and inspection.

10. It shall be lawful for any duly authorised officer or servant of the Council with or without workmen and servants at any time to enter upon and inspect the new sewer and the works apparatus and appliances connected therewith or any part thereof and the sewerage works of the two authorities or either of them and all or any sewers drains works apparatus and appliances

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in connection therewith (whether within or without the Ilford district or the Barking district) for the purpose of ascertaining whether any default in complying with any of the provisions of this Act is being committed and the Council may for that purpose on giving to the Ilford Corporation or the Barking Council (as the case may be) not less than seven clear days' notice in writing of their intention in that behalf open and break up any street within the district reinstating the same to the reasonable satisfaction of the authority as soon as may be after such inspection at the expense of the authority if any substantial default be discovered but otherwise at the expense of the Council.

A.D. 1928.
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11.—(1) The Ilford Corporation and the Barking Council shall in respect of moneys borrowed by the Council and the Metropolitan Commissioners of Sewers and the Metropolitan Board of Works or any of them for purposes of or connected with the London main drainage system or otherwise provided to meet capital expenditure for those purposes and repaid or set aside for repayment before the date of the passing of this Act pay to the Council in such proportions as may be agreed between them or in default of agreement determined by the Minister of Health on the application of the two authorities or either of them or of the Council thirty annual sums of one thousand pounds each payable on the thirty-first day of March in each year and the first of such sums shall be payable on the thirty-first day of March which next follows the date on which sewage and drainage from either of the two districts shall first be received into the London main drainage system.

Two authorities to make payments in respect of discharged capital outlay on London main drainage system.

(2) The Council shall within six months after the passing of this Act produce to the Commissioners of Inland Revenue a King's Printer's copy thereof stamped with the ad valorem duty which would be payable upon an instrument (as defined by the Stamp Act 1891) made between and under the respective seals of the Council and the Ilford Corporation and the Barking Council on the date of the passing of this Act and containing the provisions set out in this section and in default of such production the said duty with interest thereon at the rate of five pounds per centum per annum from the time hereinbefore fixed for production until payment shall be a debt due from the Council to His Majesty.

A.D. 1928.

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Half-yearly
contribu-
tions by two
authorities.

12.—(1) From and after the date or respective dates on which sewage and drainage shall first be received into the London main drainage system from the Ilford district and the Barking district respectively the Ilford Corporation and the Barking Council shall in respect of each financial year respectively pay to the Council by half-yearly payments for receiving conveying treating and disposing of such sewage and drainage such a sum as shall bear to the total net annual value of the Ilford district or the Barking district (as the case may be) the proportion which that part of the total cost (as hereinafter defined) in respect of that financial year of the London main drainage system which is charged upon the rates of the county bears to the total rateable value of the county as hereinafter defined. Provided that in the case of the first of such half-yearly payments the necessary apportionment shall be made in respect of any period less than half a year.

(2) The amount of the total net annual and rateable values referred to in subsection (1) of this section shall be subject to adjustment in respect of any alterations duly made therein other than amendments to which the proviso to subsection (10) of section 37 of the Rating and Valuation Act 1925 applies.

(3) The Council shall twice in each financial year by notice in writing delivered as soon as reasonably practicable to the respective clerks of the two authorities inform each of the two authorities of the amount of the half-yearly payment to be made by such authority next after the date of the notice and such authority shall on or before the date named in that behalf in such notice (not being earlier than six weeks from the receipt by them of the notice) pay to the Council the amount stated in such notice.

(4) For the purposes of this section—

(a) the total cost in respect of any financial year of the London main drainage system shall be deemed to be the aggregate of the following amounts (that is to say):—

(i) the amount paid or applied by the Council in respect of that financial year for interest on and the repayment or redemption by means of a sinking or redemption fund or otherwise of all moneys

borrowed and all stock issued by the Metropolitan Board of Works or the Council (whether before or after the passing of this Act) for the purposes of or connected with the London main drainage system; A.D. 1928.
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(ii) the net expenses (hereinafter referred to as "the cost of maintenance") incurred by the Council in respect of the management maintenance and working of the said system in that financial year; and

(iii) such a sum (not exceeding five per centum of the cost of maintenance) in respect of administrative expenses not comprised in the cost of maintenance as the Council may from time to time determine. Provided that notwithstanding anything contained in this subsection the sums payable by the two authorities respectively under this section in respect of any financial year shall be calculated in the first instance on the basis of the estimated cost of the London main drainage system for that financial year and shall be paid by the two authorities respectively as if they had been calculated on the basis of the ascertained cost of the said system for that financial year subject to an allowance being made or an additional sum being charged (as the case may require) when the actual cost is ascertained :

- (b) the total rateable value of the county shall be deemed to be the total rateable value of the county on the sixth day of April in the financial year with reference to which the expression is used as ascertained in accordance with the provisions of the Valuation (Metropolis) Act 1869 as amended or extended by any other enactment with the addition of the annual value on which contributions in lieu of rates are made by or on behalf of the Crown in respect of property held by or on behalf of the Crown in the county which is not for the time being comprised in such total rateable value.

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Provisions
in case of
default.

13. In case default be made in the payment of any sum payable by the Ilford Corporation or the Barking Council under the provisions of this Act such sum with interest thereon at the rate of five per centum per annum from the date at which such payment became due shall be deemed to be a debt due to the Council from the authority in default.

Two autho-
rities to
indemnify
Council.

14. Each of the two authorities shall at all times keep the Council effectually indemnified against—

- (a) all rates taxes charges duties assessments and impositions whatsoever which may be levied charged or imposed upon the new sewer or the works lands or buildings occupied or used exclusively in connection therewith or upon the owners or occupiers in respect thereof; and
- (b) all actions proceedings penalties costs damages expenses claims and demands which may be instituted against or incurred by or made against the Council in respect of anything done or omitted or suffered by the Council in or about the construction maintenance or use of the new sewer or of the said works or in respect of the character or composition of the sewage or drainage from the district conveyed by the new sewer or otherwise in respect of any matter (not attributable to any default of the Council or to any act or default of any body or person other than the Council or the authority) referred to in or arising out of the provisions of this Act.

As to
responsi-
bilities of
Council and
two autho-
rities.

15. Nothing in this Act shall impose on the Council any responsibility for the internal drainage system of any part of the Ilford district or the Barking district and the approval by the Council of any works executed by the authority under the provisions of this Act shall not relieve the authority from any of their obligations or responsibilities under this Act.

Arbitration.

16. Any difference which may arise under the provisions of this Act shall (except so far as is by or under the provisions of this Act otherwise provided) be referred to and determined by an arbitrator to be agreed upon by the parties in difference or failing such agreement to be appointed on the application of any one of the said

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parties (after notice in writing to the other or others of them) by the Minister of Health and the decision of such arbitrator shall be final Subject to the foregoing provisions of this section the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration. A.D. 1928.

17. Notwithstanding anything contained in this Act the Council on the one hand and the two authorities or either of them on the other hand may from time to time enter into and carry into effect agreements (which shall have the same force as if effect had been given thereto in this Act) for varying any of the provisions of this Act so far as they relate only to the rights or obligations of the parties to any such agreement but no such variation shall be made which would affect prejudicially the rights or interests of any person other than the parties to such agreement. Power to vary provisions of Act by agreement.

18. The payment by the two authorities of the costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act and the payment of all other moneys required by the two authorities for expenditure on capital account for the purposes of or in connection with this Act shall be deemed to be incurred by them in the execution of the Public Health Act 1875 and the provisions of that Act relating to the borrowing of moneys required for the purposes of that Act shall apply to such payments. As to payment by two authorities of costs of Act.

19. All expenses incurred by the two authorities pursuant to the provisions or for the purposes of this Act (other than expenses properly chargeable to capital account) shall be defrayed by them out of the general rate funds and general rates of the two districts. As to two authorities' expenses.

20. All costs and expenses of the Council in the execution of this Act (except so far as they may be otherwise provided for by this Act) shall be defrayed as payments for general county purposes within the meaning of the Local Government Act 1888 and the reasonable costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act shall be paid by the Council in like manner Provided that such last-mentioned costs charges and expenses shall be repaid to the Council by the two authorities in such proportions as may be agreed between As to payments under this Act.

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A.D. 1928. them (or in default of agreement determined by the
— Minister of Health on the application of the two authorities or either of them or of the Council) out of the general rates authorised to be levied by the Ilford Corporation and the Barking Council respectively or out of moneys to be borrowed for that purpose by the two authorities.

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